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## LEAVE AND LICENSE AGREEMENT

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This LEAVE AND LICENSE AGREEMENT ("Agreement") is executed at New Delhi on this 1st day of April, 2022.

BETWEEN:

MRS. PRIYA VIKRAM CHAUHAN, Wife of Mr. Vikram Singh Chauhan, aged about 45 years, an Indian citizen, residing at Flat No. 8, Fourth Floor, Plot No. 1A, Hauz Khas Enclave, New Delhi – 110016, PAN: CJKPC2294L, Aadhaar No. XXXX-XXXX-6738 (hereinafter referred to as the "LICENSOR", which expression shall, unless repugnant to the context or meaning thereof, mean and include her heirs, legal representatives, executors, administrators, successors and assigns) of the FIRST PART;

AND

MR. ARJUN MEHTA, Son of Mr. Deepak Mehta, aged about 32 years, an Indian citizen, presently residing at 15-B, Safdarjung Development Area, New Delhi – 110016, PAN: DRMPM7741Q, Aadhaar No. XXXX-XXXX-4192 (hereinafter referred to as the "LICENSEE", which expression shall, unless repugnant to the context or meaning thereof, mean and include his heirs, legal representatives, executors, administrators, successors and assigns) of the SECOND PART.

The Licensor and the Licensee are hereinafter individually referred to as "Party" and collectively referred to as "Parties".

### RECITALS

WHEREAS the Licensor is the absolute and undisputed owner of the property more fully described in the Schedule hereunder, having acquired the same by virtue of a registered Gift Deed bearing Document No. 2891/2015 dated 15th September 2015, registered at the Office of the Sub-Registrar, SRO V-A (Hauz Khas), New Delhi, and the Licensor has been in peaceful possession and enjoyment of the said property since the date of the said Gift Deed;

AND WHEREAS the said property is a self-contained residential flat, being Flat No. 8, situated on the Fourth Floor, Plot No. 1A, Hauz Khas Enclave, New Delhi – 110016, admeasuring approximately 1200 sq.ft. (super built-up area), free from all encumbrances, charges, liens, attachments, and litigations of whatsoever nature;

AND WHEREAS the Licensee has approached the Licensor and requested her to grant leave and license to occupy and use the said flat for a temporary period, and the Licensor has agreed to grant such leave and license on the terms and conditions hereinafter appearing;

AND WHEREAS the Parties have mutually agreed that this Agreement shall be a Leave and License under and in accordance with Section 52 of the Indian Easements Act, 1882, and shall NOT constitute a lease or tenancy under the Transfer of Property

Act, 1882, or the Delhi Rent Control Act, 1958, or any other applicable law, and the Licensee shall have no right, title, or interest in the said property and shall not claim any tenancy or sub-tenancy rights therein;

AND WHEREAS this Agreement is being executed on non-judicial stamp paper of appropriate value as prescribed under the Indian Stamp Act, 1899, read with the Delhi Stamp (Prevention of Under-Valuation of Instruments) Rules, 2007.

NOW THIS AGREEMENT WITNESSETH AND IT IS HEREBY AGREED BY AND BETWEEN THE PARTIES AS FOLLOWS:

1. **GRANT OF LICENSE:** The Licensors hereby grants to the Licensee a revocable license to use and occupy the premises described in the Schedule below, namely Flat No. 8, Fourth Floor, Plot No. 1A, Hauz Khas Enclave, New Delhi – 110016, strictly on the terms and conditions set out in this Agreement. The Licensors retain legal possession and ownership of the said premises at all times.
2. **LICENSE PERIOD:** The license hereby granted shall be for a fixed period of Eleven (11) months commencing from the 1st day of April, 2022 and expiring on the 28th day of February, 2023 (both days inclusive), unless terminated earlier in accordance with the provisions herein.
3. **LICENSE FEE:** The Licensee shall pay to the Licensors a monthly license fee of Rs. 35,000/- (Rupees Thirty-Five Thousand Only) payable in advance on or before the 5th day of each calendar month. The first month's license fee shall be payable on the date of execution of this Agreement. Payments shall be made by cheque drawn on a scheduled bank or by electronic bank transfer (NEFT/RTGS/UPI) to the Licensors' bank account, details of which have been shared separately.
4. **SECURITY DEPOSIT:** The Licensee has, prior to the execution of this Agreement, paid to the Licensors a refundable interest-free security deposit of Rs. 2,00,000/- (Rupees Two Lakhs Only) by way of demand draft / electronic transfer. The receipt of the said amount is hereby acknowledged by the Licensors. The said deposit shall be refunded by the Licensors to the Licensee within thirty (30) days of the expiry or earlier termination of this Agreement and the Licensee handing over vacant and peaceful possession of the said premises in the same condition as at the time of taking possession (fair wear and tear excepted), subject to deduction of any outstanding license fee, utility charges, damages (beyond normal wear and tear), or any other amounts due from the Licensee under this Agreement.
5. **PURPOSE AND USE:** The Licensee shall use the said premises as commercial office space for his consultancy firm and shall not use the same or any part thereof for any unlawful, immoral, or objectionable purpose. The Licensee shall not store any hazardous material, inflammable substances, or contraband within the premises.
6. **MAINTENANCE AND OUTGOINGS:** The Licensee shall bear and pay all charges on account of maintenance of the said flat, including the monthly maintenance charges payable to the Residents' Welfare Association / Cooperative Group

Housing Society, during the license period. Additionally, the Licensee shall pay all charges for electricity (as per the individual meter installed for the flat), water, piped gas, and any other utilities consumed by the Licensee during the license period. Property tax and any structural insurance premium shall be borne by the Licensor.

7. **SUBLETTING AND ASSIGNMENT:** The Licensee shall NOT sublet, assign, transfer, or part with the possession or occupancy of the said premises or any part thereof to any third party, whether with or without consideration, without the prior written consent of the Licensor. Any such unauthorised subletting or assignment shall render this Agreement void and the Licensee shall be liable to forthwith vacate the premises.
8. **ALTERATIONS AND MODIFICATIONS:** The Licensee shall not make any structural alterations, modifications, additions, or improvements to the said premises without the prior written consent of the Licensor. Any permissible non-structural changes (such as drilling for curtain rods, installation of air-conditioning units in designated locations) shall be restored by the Licensee at the time of vacating the premises at the Licensee's own cost.
9. **CONDITION OF PREMISES:** The Licensee acknowledges having inspected the said premises and having found the same in good and habitable condition. The Licensee shall maintain the premises in the same condition throughout the license period (fair wear and tear excepted) and shall hand over vacant possession in the same condition at the time of vacating.
10. **REPAIR AND MAINTENANCE:** Minor day-to-day repairs, including repairs to sanitary fittings, electrical fittings, switches, taps, and similar items up to a value of Rs. 5,000/- per instance, shall be borne by the Licensee. Major structural repairs and repairs exceeding Rs. 5,000/- per instance shall be the responsibility of the Licensor, provided the Licensee gives prompt written notice thereof.
11. **TERMINATION BY LICENSOR:** The Licensor may revoke this license at any time during the license period by giving the Licensee not less than two (2) months' prior written notice. Upon receipt of such notice, the Licensee shall vacate the premises and hand over vacant possession on or before the date specified in the notice. In such event, the security deposit shall be refunded as per Clause 4 above.
12. **TERMINATION BY LICENSEE:** The Licensee may terminate this Agreement at any time during the license period by giving the Licensor not less than two (2) months' prior written notice. Upon such termination, the Licensee shall vacate and hand over vacant possession, and the Licensor shall refund the security deposit as per Clause 4 above.
13. **DEFAULT AND CONSEQUENCES:** If the Licensee fails to pay the monthly license fee for two (2) consecutive months, or commits a breach of any material term of this Agreement, the Licensor shall be entitled to revoke this license forthwith and require the Licensee to vacate the premises within fifteen (15) days of written notice of such revocation. In such event, the Licensor may deduct from the security deposit any arrears of license fee and

other dues.

14. **LICENSOR'S RIGHT OF INSPECTION:** The Licensor, or her authorised agent, shall have the right to enter and inspect the said premises at any reasonable time upon giving reasonable prior notice to the Licensee. The Licensee shall not obstruct or deny such access.
15. **INVENTORY AND FIXTURES:** An inventory list of all fixtures, fittings, furniture, and appliances provided by the Licensor with the premises has been prepared in duplicate, signed by both Parties, and annexed hereto as Annexure-A. The Licensee shall be responsible for the safety and upkeep of the items listed therein.
16. **INSURANCE:** The Licensor shall maintain adequate insurance for the structure of the building. The Licensee shall, at his own cost, insure his personal belongings, equipment, and contents kept in the premises. Neither Party shall be liable for loss or damage to the other's property except to the extent caused by the negligence or wilful act of such Party.
17. **COMPLIANCE WITH LAWS:** The Licensee shall comply with all applicable laws, rules, regulations, and bye-laws of the local authority, the Residents' Welfare Association, and any other competent authority in relation to the use and occupation of the said premises.
18. **FORCE MAJEURE:** Neither Party shall be liable for delay or failure in performance of its obligations hereunder to the extent that such delay or failure is caused by circumstances beyond the reasonable control of that Party, including acts of God, natural disasters, epidemics, government restrictions, or war.
19. **DISPUTE RESOLUTION:** All disputes and differences arising out of or in connection with this Agreement shall first be attempted to be resolved amicably by mutual discussion. If the Parties fail to resolve the dispute within thirty (30) days, the matter shall be referred to a sole arbitrator mutually appointed by both Parties, in accordance with the Arbitration and Conciliation Act, 1996. The seat of arbitration shall be New Delhi, and the proceedings shall be conducted in English.
20. **GOVERNING LAW AND JURISDICTION:** This Agreement shall be governed by and construed in accordance with the laws of India, and the courts at New Delhi shall have exclusive jurisdiction in relation to any disputes arising out of this Agreement.
21. **GENERAL PROVISIONS:**
  - (a) This Agreement constitutes the entire agreement between the Parties with respect to the subject matter hereof and supersedes all prior negotiations, discussions, and agreements between them.
  - (b) Any amendment or modification to this Agreement shall be valid only if made in writing and signed by both Parties.

- (c) The headings and clause numbers in this Agreement are for convenience of reference only and shall not affect the interpretation hereof.
- (d) If any provision of this Agreement is held to be invalid or unenforceable, the remaining provisions shall continue in full force and effect.
- (e) This Agreement is executed in duplicate; the original shall be retained by the Licensor and the duplicate by the Licensee.
- (f) The Licensee acknowledges that this is a Leave and License and NOT a lease, and the Licensee shall acquire no right of tenancy or any estate or interest in the property.

#### SCHEDULE OF PROPERTY

All that residential flat being Flat No. 8, situated on the Fourth Floor of the building standing on Plot No. 1A, Hauz Khas Enclave, within the limits of the New Delhi Municipal Council (NDMC) / South Delhi Municipal Corporation, in the Revenue Estate of Village Hauz Khas, Tehsil Hauz Khas, New Delhi – 110016, admeasuring approximately 1200 sq.ft. (One Thousand Two Hundred Square Feet) (super built-up area), and more particularly described as under:

##### BOUNDED AS FOLLOWS:

On the East : By common passage / staircase  
On the West : By outer wall abutting neighbouring plot  
On the North : By flat of another owner on the same floor  
On the South : By outer wall facing the main road of Hauz Khas Enclave  
On the Top : By Fifth Floor slab / terrace  
On the Bottom : By Third Floor flat slab

Together with the proportionate undivided share in the land underneath the building, common areas, staircases, lifts, and open spaces as applicable, and the right to one covered car parking space in the basement / stilt area of the building.

IN WITNESS WHEREOF, the Parties hereto have set and subscribed their respective hands and signatures on the day, month, and year first hereinabove written in the presence of the witnesses mentioned below.

LICENSOR:

LICENSEE:

\_\_\_\_\_  
Mrs. Priya Vikram Chauhan  
(FIRST PARTY)

\_\_\_\_\_  
Mr. Arjun Mehta  
(SECOND PARTY)

WITNESSES:

1. Name : \_\_\_\_\_  
S/o : \_\_\_\_\_

Address: \_\_\_\_\_  
Signature: \_\_\_\_\_

2. Name : \_\_\_\_\_  
S/o : \_\_\_\_\_  
Address: \_\_\_\_\_  
Signature: \_\_\_\_\_

### REGISTRATION ENDORSEMENT

Registered in the Office of the Sub-Registrar, SRO V-A (Hauz Khas), New Delhi,  
on this 5th day of April, 2022.

Document No. : 4455 of 2022  
Book No. : I (Book 1)  
Volume No. : \_\_\_\_\_  
Pages : \_\_\_\_\_ to \_\_\_\_\_  
Filed on : 5th April 2022  
Registration Fee Paid : Rs. \_\_\_\_\_  
Stamp Duty Paid : Rs. \_\_\_\_\_

Presented for registration by Mrs. Priya Vikram Chauhan (Licensor, First Party),  
identified by Shri \_\_\_\_\_, Advocate, having office at  
\_\_\_\_\_, New Delhi.

Sub-Registrar  
SRO V-A (Hauz Khas), New Delhi  
(Seal & Signature)

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END OF LEAVE AND LICENSE AGREEMENT

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